

HOUSE No. 1415

The Commonwealth of Massachusetts

PRESENTED BY:

Steven Ultrino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect qualified medicare beneficiaries from improper billing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>1/17/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>5/14/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>5/14/2025</i>
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>5/14/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>5/14/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>5/14/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>5/23/2025</i>

HOUSE No. 1415

By Representative Ultrino of Malden, a petition (accompanied by bill, House, No. 1415) of Steven Ultrino for legislation to protect qualified medicare beneficiaries from improper billing. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect qualified medicare beneficiaries from improper billing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 118E of the General Laws is hereby amended by inserting the following new
2 section after section 25A:-

3 Section 25B. (a) All Medicare, Medicare Advantage, and MassHealth providers and
4 suppliers must not bill Medicare beneficiaries in the Qualified Medicare Beneficiary, also known
5 as QMB, eligibility group for Medicare Part A or Part B cost-sharing pursuant to federal and
6 state law.

7 (b) Providers who unlawfully bill Medicare beneficiaries in the QMB eligibility group for
8 Medicare cost-sharing including deductibles, co-pays, or co-insurance shall be subject to
9 sanctions pursuant to regulations promulgated by the division within 90 days of this section
10 taking effect. Such sanctions may include but are not limited to monetary fines and shall take
11 account of mitigating circumstances such as clerical errors and good faith mistakes.